

claude-windows / 068560d3-1ca2-4387-981a-d2d6bca55414

Metadata

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- Imported at: `2026-07-05T16:48:28+00:00`
- project: `wf\_47057438-9c9`
- session_id: `068560d3-1ca2-4387-981a-d2d6bca55414`

Transcript

1. user (2026-06-16T02:44:47.465Z)

RESEARCH QUESTION: Under the EU sui generis DATABASE RIGHT (Directive 96/9/EC) and copyright, does extracting and redistributing DERIVED match data (coordinates / event timestamps) from a broadcast infringe? Cover: British Horseracing Board v. William Hill (C-203/02); Football Dataco v. Sportradar (C-173/11) and Football Dataco v. Yahoo (C-604/10); the 'obtaining vs creating' data distinction; 'extraction/re-utilization of a substantial part'; Ryanair v. PR Aviation (C-30/14) on contracts overriding DB-right exceptions. Bottom line for our derived numeric streams in the EU.

METHOD: Use WebSearch and WebFetch to find and cite AUTHORITATIVE sources (statutes, case law, official regulator guidance, reputable legal commentary). Load them first if needed via ToolSearch with query 'select:WebSearch,WebFetch'. Cite real URLs. If you cannot fetch a source, mark that claim's confidence 'low' and set webUsed=false. Do NOT fabricate citations ? an honest 'unverified' beats an invented case name or URL.

2. assistant (2026-06-16T02:45:05.278Z)

I'll research this question on EU database right and copyright as applied to derived match data. Let me start by loading the web tools.

3. assistant (2026-06-16T02:45:09.402Z)

I have the web tools loaded. Let me research the key cases in parallel, starting with authoritative sources for each.

4. user (2026-06-16T02:45:17.852Z)

Web search results for query: "British Horseracing Board v William Hill C-203/02 CJEU database right obtaining vs creating data"

Links: [{"title": "Case C-203/02 The British Horseracing Board Ltd and Others v", "url": "https://eur-lex.europa.eu/juris/showPdf.jsf?docid=64559&pageIndex=0&doclang=en&mode=req&occ=first&part=1&cid=9204340"}, {"title": "British Horseracing Board v. William Hill Organization, EU Case C-203/02, 2004 WL 2709083 (2004): Case Brief Summary | Quimbee", "url": "https://www.quimbee.com/cases/british-horseracing-board-v-william-hill-organization"}, {"title": "British Horseracing Board v William Hill - 5RB Barristers", "url": "https://www.5rb.com/case/british-horseracing-board-v-william-hill/"}, {"title": "CJEU - Judgment C-203/02 British Horseracing 9 Nov 2004", "url": "https://www.ipcuria.eu/case?reference=C-203%2F02"}, {"title": "62002CJ0203 - EN - EUR-Lex - European Union", "url": "https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex%3A62002CJ0203"}, {"title": "British Horseracing Board v William Hill", "url": "https://www.pinsentmasons.com/out-law/guides/british-horseracing-board-v-william-hill"}, {"title": "British Horseracing Board Ltd & Ors v William Hill Organization Ltd, England and Wales Court of Appeal (Civil Division), Judgment, Law, casemine.com", "url": "https://www.casemine.com/judgement/uk/5a8ff6fd60d03e7f57ea5557"}, {"title": "Database rights ? recent judgment"}]

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from the Court of Appeal","url":"https://cms-lawnow.com/en/ealerts/2005/07/database-rights-recent-judgment-from-the-court-of-appeal"}, {"title": "Database right and the ECJ judgment in BHB v. William Hill: Dark horse or non-starter? - ScienceDirect", "url": "https://www.sciencedirect.com/science/article/abs/pii/S0267364905000671"}, {"title": "British Horseracing Board Ltd & Ors v William Hill Organization Ltd", "url": "https://caselaw.nationalarchives.gov.uk/ewca/civ/2005/863"}]
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I've found comprehensive information about this landmark CJEU case. Here's what the case covers:

Case Overview

Case C-203/02 involved The British Horseracing Board Ltd and Others v William Hill Organization Ltd, concerning the legal protection of databases under Directive 96/9/EC, specifically addressing the sui generis right regarding obtaining, verification or presentation of database contents, and issues of extraction and re-utilisation.

The Obtaining vs. Creating Data Issue

The key distinction that the case grappled with relates to database protection eligibility. The central questions were whether the investment made in compiling and verifying the horseracing database qualified as substantial investment in "obtaining" or "verification" of contents under Article 7(1) of Directive 96/9/EC, and whether the lists of runners compiled constituted "existing independent materials" or were "created" data.

The ECJ addressed this distinction: The process of compiling the database involved substantial investment in gathering, recording, and verifying existing independent materials rather than creating new data. This process of owner entries, verification, eligibility checks, and declarations results in a database right under Article 7(1) because it involves obtaining and verifying content.

The Judgment

The Court of Justice (Grand Chamber) delivered its judgment on 9 November 2004, interpreting the scope of database protection rights under the Database Directive.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

5. user (2026-06-16T02:45:19.493Z)

Web search results for query: "Football Dataco v Sportradar C-173/11 CJEU re-utilisation database right location"

Links: [{"title": "Database Right: ECJ Judgment in Football Data Co v Sportradar - Society for Computers & Law", "url": "https://www.scl.org/2595-database-right-ecj-judgment-in-football-data-co-v-sportradar/"}, {"title": "C-173/11 Football Dataco v. Sportradar - Case Summary and Analysis by Napoleon Xanthoulis, Alexandros Georgiades :: SSRN", "url": "https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2468554"}, {"title": "Football Dataco keeps the Court of Justice busy, this time with jurisdictional issues | Kluwer Copyright Blog", "url": "https://copyrightblog.kluweriplaw.com/2012/07/02/football-dataco-keeps-the-court-of-justice-busy-this-time-with-jurisdictional-issues/"}, {"title": "A Game of One Half: CJEU's Ruling Lands Short of the Goal - Society for Computers & Law", "url": "https://www.scl.org/2600-a-game-of-one-half-cjeu-s-ruling-lands-short-of-the-goal/"}, {"title": "62011CJ0173 - EN - EUR-Lex - European Union", "url": "https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A62011CJ0173"}, {"title": "CJEU - Judgment C-173/11 Football Dataco 18 Oct 2012", "url": "https://ipcuria.eu/case?reference=C-173/11"}, {"title": "Targeting gets targeted -- and data gets a bit more protected - The IPKat", "url": "https://ipkitten.blogspot.com/2012/10/targeting-gets-targeted-and-data-gets.html"}, {"title": "Football DataCo v Yahoo! The ECJ interprets the Database Directive ? SCRIPTed", "url": "https://script-ed.org/article/analysis/"}, {"title": "ARTICLE DETAIL CJEU RULES IN FOOTBALL DATACO V SPORTRADAR THAT AT LEAST TRANSMISSION THEORY APPLIES"}]

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2010","url":"https://ifrro.org/page/article-detail/cjeu-rules-in-football-dataco-v-sportradar-that-at-least-transmission-theory-applies-2010/"},"title":"Publications Office of the EU","url":"https://op.europa.eu/sk/publication-detail/-/publication/2dc4138a-4377-11e2-9b3b-01aa75ed71a1/language-en"}]]
```

Based on the search results, here's what I found about the Football Dataco v Sportradar C-173/11 CJEU case:

Case Overview

Case 173/11 Football Dataco Ltd v Sportradar GmbH was a reference to the CJEU from the English claim brought by Football Dataco and others against sports data supplier Sportradar. The claim related to the use of data collected live during English and Scottish football matches.

Key Jurisdictional Issue

Sportradar sought to avoid the jurisdiction of the English courts, arguing that the infringing act of 're-utilisation' of the claimants' database could only take place in the Member States in which its servers were situated.

The central question concerned the location of re-utilisation. The Database Directive defines 're-utilisation' as 'any form of making available to the public', and the key question for the CJEU was whether the relevant data was made available in Austria (the place of 'emission', where Sportradar's servers were), in the UK (the place of 'reception', where the internet users targeted by the website hosting the data were), or both.

CJEU Judgment

The Court of Justice of the European Union handed down its judgment in Football Dataco v. Sportradar Case C-173/11 on 18 October. In a narrow ruling, the Court has held that where a company in Member State A unlawfully acquires data from a protected database and sends that data to a person located in Member State B, it may be sued in Member State B, provided that it intended to target the data to members of the public in Member State B.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

6. assistant (2026-06-16T02:45:23.928Z)

Let me fetch the authoritative EUR-Lex sources for the key cases, plus search for the remaining ones.

7. user (2026-06-16T02:45:29.452Z)

REDIRECT DETECTED: The URL redirects to a different host.

Original URL: <https://curia.europa.eu/juris/showPdf.jsf?docid=64559&pageIndex=0&doclang=en&mode=req&occ=first&part=1&cid=9204340>

Redirect URL: <https://infocuria.curia.europa.eu/tabs/redirect/juris/showPdf.jsf?docid=64559&pageIndex=0&doclang=en&mode=req&occ=first&part=1&cid=9204340>

Status: 301 Moved Permanently

To complete your request, I need to fetch content from the redirected URL. Please use WebFetch again with these parameters:

- url: "https://infocuria.curia.europa.eu/tabs/redirect/juris/showPdf.jsf?docid=64559&pageIndex=0&doclang=en&mode=req&occ=first&part=1&cid=9204340"

- prompt: "Extract the key holdings of Case C-203/02 British Horseracing Board v William Hill on: (1) the distinction between 'obtaining' existing data versus 'creating' data, and whether resources used to create the data underlying a database count toward 'substantial investment' under Article 7(1) of Directive 96/9/EC; (2) the definition of 'extraction' and 're-utilisation'; (3) what counts as a 'substantial part' (quantitatively and qualitatively) under Article 7(1); (4) the rule on repeated and systematic extraction of insubstantial parts under

Article 7(5). Quote the operative paragraphs and ruling numbers."

8. user (2026-06-16T02:45:36.264Z)

Web search results for query: "Football Dataco v Yahoo C-604/10 CJEU copyright database originality author's own intellectual creation"

Links: [{"title": "Football DataCo v Yahoo! The ECJ interprets the Database Directive ? SCRIPTed", "url": "https://script-ed.org/article/analysis/"}, {"title": "Football Dataco keeps the Court of Justice busy, this time with jurisdictional issues | Kluwer Copyright Blog", "url": "https://copyrightblog.kluweriplaw.com/2012/07/02/football-dataco-keeps-the-court-of-justice-busy-this-time-with-jurisdictional-issues/"}, {"title": "Football Dataco: skill and labour is dead! | Kluwer Copyright Blog", "url": "https://copyrightblog.kluweriplaw.com/2012/03/01/football-dataco-skill-and-labour-is-dead/"}, {"title": "Football Dataco Ltd and Others v Yahoo! UK Ltd and Others. - vLex European Union - vLex", "url": "https://eu.vlex.com/vid/judgment-of-the-court-838665509"}, {"title": "Football fixture lists - Has the final whistle been blown for database copyright?", "url": "https://cms-lawnow.com/en/ealerts/2011/12/football-fixture-lists-has-the-final-whistle-been-blown-for-database-copyright"}, {"title": "Judgment in Football Fixture Copyright Case - Society for Computers & Law", "url": "https://www.scl.org/2379-judgment-in-football-fixture-copyright-case/"}, {"title": "62010CJ0604 - EN - EUR-Lex - European Union", "url": "https://eur-lex.europa.eu/legal-content/EN/ALL/?uri=CELEX:62010CJ0604"}, {"title": "Football Dataco: implications for copyright subsistence | Practical Law", "url": "https://uk.practicallaw.thomsonreuters.com/7-518-6424?transitionType=Default&contextData=(sc.Default)"}, {"title": "The University of Southampton", "url": "https://eprints.soton.ac.uk/471316"}, {"title": "curia.europa.eu", "url": "https://curia.europa.eu"}, {"title": "pa.eu/jcms/jcms/P_84903/en"}]

Based on the search results, here's what I found about the Football Dataco v Yahoo case C-604/10:

Case Overview

Case C-604/10 is a decision by the Court of Justice for the European Union on the interpretation of Database Directive 96/9EC concerning the harmonised copyright scheme for original information collections. The judgment was delivered on 1 March 2012.

Key Ruling on Originality and Database Copyright

The central holding of the case concerns what constitutes sufficient originality for copyright protection. The court held that "significant labour and skill of the author of the database cannot as such justify the protection of it by copyright under Directive 96/9, if that labour and that skill do not express any originality in the selection or arrangement of that data".

Critical Distinction: Structure vs. Content

The CJEU stated that copyright protection concerns the 'structure' of the database, not its 'contents', and that the concepts of 'selection' and 'arrangement' refer to the selection and arrangement of data through which the author gives the database its structure. Critically, these concepts do not extend to the creation of the data contained in the database, and consequently the intellectual effort and skill of creating data are not relevant to assess the database's eligibility for copyright protection.

The case specifically involved football fixture lists and established that mere labor and effort in compiling data, without originality in how the data is selected and arranged, cannot warrant copyright protection.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

9. assistant (2026-06-16T02:45:39.234Z)

Let me fetch the EUR-Lex authoritative text for BHB and Football Dataco v Yahoo, and search for Ryanair v PR Aviation.

10. user (2026-06-16T02:45:50.086Z)

Case C-203/02: British Horseracing Board v William Hill ? Key Holdings

Operative Ruling (Numbered Points)

****Point 1 ? Creating vs. Obtaining:****

Resources used to **create** data (e.g., compiling horse race lists, verifying entries pre-race) do not constitute "investment in obtaining" under Article 7(1). The Court stated: "Investment in the obtaining of the contents refers to resources used to seek out existing independent materials and collect them." Creation of new materials falls outside this definition.

****Point 2 ? Extraction & Re-utilisation:****

These terms mean "any unauthorised act of appropriation and distribution to the public of the whole or a part of the contents of a database." Critically: "Those terms do not imply direct access to the database concerned." Public availability does not exhaust the maker's rights.

****Point 3 ? Substantial Part (Quantitative & Qualitative):****

- **Quantitative**: "Volume of data extracted assessed in relation to the total volume of the contents"
- **Qualitative**: "Scale of the investment in obtaining, verification or presentation regardless of whether that subject represents a quantitatively substantial part"

****Point 4 ? Article 7(5) Safeguard:****

Prohibits "unauthorised acts of extraction or re-utilisation the cumulative effect of which is to reconstitute and/or make available the whole or a substantial part" thereby prejudicing the maker's investment.

11. user (2026-06-16T02:45:53.644Z)

Web search results for query: "Ryanair v PR Aviation C-30/14 CJEU contract terms override database directive exceptions unprotected database"

Links: [{"title": "Ryanair Ltd v. PR Aviation BV: contracts, rights and users in a low cost database law | Kluwer Copyright Blog", "url": "https://copyrightblog.kluweriplaw.com/2015/01/26/ryanair-ltd-v-pr-aviation-bv-contracts-rights-and-users-in-a-low-cost-database-law/"}, {"title": "Protection for unprotected databases | Feature | Law Gazette", "url": "https://www.lawgazette.co.uk/legal-updates/protection-for-unprotected-databases/5046552.article"}, {"title": "BREAKING: CJEU says that owner of an online database not protected by copyright or sui generis right may restrict its use by contract - The IPKat", "url": "https://ipkitten.blogspot.com/2015/01/breaking-cjeu-says-that-owner-of-online.html"}, {"title": "ECJ clarifies Database Directive scope in screen scraping case - The Global Legal Post", "url": "https://www.globallegalpost.com/blogs/ecj-clarifies-database-directive-scope-in-screen-scraping-case-128701"}, {"title": "CJEU - Judgment C-30/14 Ryanair 15 Jan 2015", "url": "https://ipcuria.eu/case?reference=C-30%2F14"}, {"title": "Website database owners may use terms and conditions to prohibit screen-scraping - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=892f2083-6557-4314-9cad-900d710d67c3"}, {"title": "62014CJ0030 - EN - EUR-Lex - European Union", "url": "https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:62014CJ0030"}]

Based on the search results, here's information about the Ryanair v PR Aviation C-30/14 CJEU case:

Overview

The CJEU's decision on 15 January 2015 in the case of Ryanair Ltd v PR Aviation BV (Case C-30/14) addressed a significant question about the scope of the Database Directive and the relationship between contract terms and database protection.

The Facts

PR Aviation operates a website which allows consumers to search through the flight data of low-cost air companies, obtaining the necessary data by automated means, inter alia, from a dataset linked to the Ryanair website. Access to Ryanair's website presupposes that a visitor accepts the application of the air company's general terms and conditions by ticking a box, which prohibit screen scraping for commercial purposes.

Key Ruling on Contract Terms and Database Directive Exceptions

The core holding addresses how contract terms interact with Database Directive protections. The CJEU concluded that if a database does not fall within the protection of either copyright or the sui generis database right, then the directive does not apply to that database at all, including the articles 6 and 8 allowances, and the article 15 prohibition against contracting out.

According to recital 39 of the ruling, articles 6(1), 8 and 15 of Directive 96/9, which establish mandatory rights for lawful users of databases, are not applicable to a database which is not protected either by copyright or by the sui generis right, so that it does not prevent the adoption of contractual clauses concerning the conditions of use of such a database.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

12. assistant (2026-06-16T02:45:57.168Z)

I have strong coverage on all four cases. Let me fetch the authoritative Football Dataco v Yahoo (C-604/10) text and the Sportradar (C-173/11) text to nail down the operative rulings, and get the Ryanair operative ruling.

13. user (2026-06-16T02:46:06.730Z)

Operative Ruling: Case C-604/10 Football Dataco v Yahoo

Numbered Points:

1. Originality Test

"a 'database'...is protected by the copyright laid down by that directive provided that the selection or arrangement of the data...amounts to an original expression of the creative freedom of its author" (para. 1, ruling)

2. Intellectual Effort in Data Creation Not Relevant

"the intellectual effort and skill of creating that data are not relevant in order to assess the eligibility of that database for protection" (para. 1, ruling)

3. Labour and Skill Insufficient Without Originality

"the significant labour and skill required for setting up that database cannot as such justify such a protection if they do not express any originality in the selection or arrangement" (para. 1, ruling)

4. Directive Precludes Divergent National Copyright Protection

Directive 96/9 "precludes national legislation which grants databases...copyright protection under conditions which are different to those set out in Article 3(1)" subject to transitional provisions (para. 2, ruling)

14. user (2026-06-16T02:46:08.414Z)

CJEU Ruling on Database Re-utilisation Localisation

Operative Ruling

The Court ruled that sending data from a web server in Member State A to a user's computer in Member State B constitutes re-utilisation occurring in Member State B, but **only where there is evidence of targeting intention**.

The Targeting/Intention Test

The Court established that mere technical accessibility of a website in a territory is insufficient. Instead, the act's localisation requires demonstrable intent to target the public in that Member State.

****Key quote from the ruling:****

"The localisation of an act of re-utilisation...depends on there being evidence from which it may be concluded that the act discloses an intention on the part of its performer to target persons in that territory."

Evidence of Targeting Intention

The Court identified factors courts should consider:

- Data relating to that country's football matches
- Contractual arrangements targeting that market's betting companies
- Remuneration reflecting local market activity
- Content provided in the territory's language

This framework prevents operators from escaping national database protection laws simply by locating servers outside a Member State's territory while deliberately targeting its users.

15. assistant (2026-06-16T02:46:11.386Z)

I now have authoritative coverage of all four cases. Let me get the Ryanair operative ruling and confirm the post-Brexit UK position briefly, since the project owner is Bangalore-based but the question is EU-focused.

16. user (2026-06-16T02:46:19.432Z)

Operative Ruling: Case C-30/14 Ryanair v PR Aviation

****The Question:**** Does Directive 96/9/EC apply to unprotected databases (those lacking both copyright and sui generis protection), and can owners contractually restrict use?

****The Court's Answer:**** No and Yes.

The operative ruling states:

> "Directive 96/9/EC must be interpreted as meaning that it is not applicable to a database which is not protected either by copyright or by the sui generis right under that directive, so that Articles 6(1), 8 and 15 of that directive do not preclude the author of such a database from laying down contractual limitations on its use by third parties."

****Key Implications:****

- Directive 96/9 protects only those databases meeting Article 3 (copyright) or Article 7 (sui generis) criteria
- Mandatory user rights in Articles 6(1), 8, and 15 apply exclusively to protected databases
- Owners of unprotected databases retain full contractual freedom to prohibit uses like screen-scraping
- The ruling supports Ryanair's terms restricting automated data extraction without a license agreement
- National law may still provide alternative protections for unprotected databases

17. user (2026-06-16T02:46:26.243Z)

Web search results for query: "CJEU "obtaining" data sui generis right sports data dynamic data created not obtained Fixtures Marketing C-46/02 C-444/02"

Links: [{"title":"62002CJ0046 - EN - EUR-Lex - European Union","url":"https://eur-

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lex.europa.eu/legal-content/EN/ALL/?uri=CELEX:62002CJ0046"}, {"title": "Databases: sui generis protection and copyright protection | Kluwer Copyright Blog", "url": "https://legalblogs.wolterskluwer.com/copyright-blog/databases-sui-generis-protection-and-copyright-protection/"}, {"title": "JIPLP: Database copyright does not protect fixture list data, says AG", "url": "http://jiplp.blogspot.com/2012/02/database-copyright-does-not-protect.html"}, {"title": "Football Dataco: No Database Copyright Protection for Fixture Lists - Society for Computers & Law", "url": "https://www.scl.org/2407-football-dataco-no-database-copyright-protection-for-fixture-lists/"}, {"title": "Football fixture lists - Has the final whistle been blown for database copyright?", "url": "https://cms.law/en/gbr/legal-updates/football-fixture-lists-has-the-final-whistle-been-blown-for-database-copyright"}, {"title": "No copyright for football fixture lists - Telfa.law", "url": "https://www.telfa.law/no-copyright-for-football-fixture-lists/"}, {"title": "Football fixtures, horse races and spin-offs: the ECJ ...", "url": "https://www.ivir.nl/publicaties/download/EIPR_2005_3_databaseright.pdf"}, {"title": "Football Dataco: skill and labour is dead! | Kluwer Copyright Blog", "url": "https://legalblogs.wolterskluwer.com/copyright-blog/football-dataco-skill-and-labour-is-dead/"}, {"title": "Public biological databases and the sui generis ...", "url": "https://ecommons.aku.edu/cgi/viewcontent.cgi?article=1708&context=provost_office"}, {"title": "Football Dataco: implications for copyright subsistence | Practical Law", "url": "https://uk.practicallaw.tomsonreuters.com/7-518-6424?transitionType=Default&contextData=(sc.Default)"}]
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Based on the search results, I can provide you with information about these CJEU cases concerning sports data and sui generis database rights:

Key Holdings

In 2004, the CJEU seriously restricted the scope of sui generis protection by admitting that investments in the creation of a database's contents cannot count as investment for obtaining the contents for purposes of awarding database sui generis rights in sports database cases (Cases C-46/02, C-203/02, C-338/02 and C-444/02).

The "Obtaining" Distinction

The crucial distinction established by these cases concerns what qualifies as "obtaining" data for sui generis protection. The investment in devising sports data could not be taken into account when determining whether a database would attract such a right; only investment in "obtaining, verification or presentation" of data that already existed was relevant.

Creation vs. Obtaining

The CJEU held that the Database Directive's concepts of "selection" and "arrangement" refer to the selection and arrangement of data through which the author gives the database its structure, and selection and arrangement do not extend to the creation of the data contained in the database.

The Cases

In 2004, producers of football fixture lists and producers of lists of horseracing runners and riders failed to persuade the ECJ as to the subsistence of sui generis database rights in such lists under the Database Directive 96/9.

These landmark decisions established that dynamically created sports data (like fixture lists) is protected by investment in creation, not "obtaining," thus falling outside the scope of sui generis database protection under Directive 96/9/EC.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

18. assistant (2026-06-16T02:46:31.605Z)

I have authoritative coverage of all the requested cases plus the companion Fixtures Marketing line. I have enough verified material to synthesize. The key analytical insight for the

project's specific question (extracting derived numeric streams ? coordinates/event timestamps ? from a broadcast) is now clear: the question turns on (a) whether the broadcaster/rights-holder even holds a protected database in the underlying match data, (b) whether what we redistribute is "extracted" from their database or independently observed/created, and (c) whether contract terms (broadcast licence / ToS) bind us regardless of IP. Let me record progress and finalize.

19. user (2026-06-16T02:47:30.800Z)

Structured output provided successfully

20. assistant (2026-06-16T02:47:40.909Z)

I've completed the research and returned the structured findings. Summary of what was verified against authoritative sources (EUR-Lex primary texts plus CJEU/IPCuria):

- **C-203/02 (BHB v William Hill)** ? the obtaining-vs-creating distinction, broad definitions of extraction/re-utilisation (no direct access required), quantitative/qualitative substantial-part test, and Art 7(5) systematic-takings rule.
- **C-604/10 (Football Dataco v Yahoo)** ? database copyright protects only original selection/arrangement (structure), never the data, and rejects sweat-of-the-brow.
- **C-173/11 (Football Dataco v Sportradar)** ? re-utilisation localised by targeting/intention, so server location alone doesn't escape EU exposure.
- **C-30/14 (Ryanair v PR Aviation)** ? for unprotected databases the Directive's mandatory user exceptions don't apply, so contractual bans on scraping are enforceable.
- Plus the companion Fixtures Marketing line (C-46/02, C-338/02, C-444/02) corroborating the creating-vs-obtaining holding for sports data.

Bottom line for our derived numeric streams: IP exposure is low (we *create* coordinates/timestamps by measuring pixels rather than *obtaining* someone's collected dataset, and facts aren't copyrightable), but the real residual risk is **contractual** ? a source's terms of use or feed licence can lawfully ban automated extraction/redistribution and bind us regardless of IP. The separate film/broadcast copyright in the video footage itself was flagged as out of scope but real for the highlight-clip side of the product.